

SENATE No. 1614

The Commonwealth of Massachusetts

PRESENTED BY:

Jacob R. Oliveira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring home care patient safety.

PETITION OF:

NAME:

Jacob R. Oliveira

DISTRICT/ADDRESS:

Hampden, Hampshire and Worcester

SENATE No. 1614

By Mr. Oliveira, a petition (accompanied by bill, Senate, No. 1614) of Jacob R. Oliveira for legislation to ensure home care for high-risk patients. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring home care patient safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting in section 236 subsection (f):-

3 Definition

4 “High Risk Patient”: Suffering from a series of chronic conditions that challenge the
5 ability to access care. This may include but not limited to dementia, conditions resulting from
6 diabetes related complications, stroke, and heart related issues.

7 A home health care agency shall ensure it receives the most updated treatment plan and
8 the most updated medication list from both the primary care doctor and hospital including when
9 a high risk patient is discharged.

10 SECTION 2. Chapter 111 of the General Laws, as appearing in the 2022 Official Edition,
11 is hereby amended by inserting in section 72 G the following:-

12 A home care agency shall take specific steps for high risk patients to ensure critical
13 services including medication administration to high risk patients are not disrupted, and shall
14 provide the most updated medication information including any changes to home visiting nurses.

15 A home health agency shall ensure a substitute home visiting nurse has the most updated
16 medication list and updated administration steps.

17 In cases where a home visiting nurses locks medication, a home health care agency shall
18 ensure a high risk patient always has supply of critical medications.

19 In case of inadvertent medical errors, a home visiting nurse shall report to medical errors
20 to primary doctor and inform family members.

21 A home health care agency shall further establish a scheduling notification system for
22 home visiting nurses, a high risk patient's primary care doctor and family members.

23 There shall be a commission to study the rising needs of an increasing elder adult
24 population including in low-income communities and causes of patient harm in home health
25 care. The commission shall study the causes of medical errors that result in patient harm
26 including in high risk patients, the challenges for health care workers, and make
27 recommendations to ensure the safety of patients, quality of home health care, and reduction of
28 patient harm including in high risk patient populations.